

HOUSE No. 141

The Commonwealth of Massachusetts

PRESENTED BY:

Marcus S. Vaughn

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act prohibiting the purchase of farm land by foreign governments.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Marcus S. Vaughn</i>	<i>9th Norfolk</i>	<i>1/16/2025</i>
<i>John R. Gaskey</i>	<i>2nd Plymouth</i>	<i>8/29/2025</i>

HOUSE No. 141

By Representative Vaughn of Wrentham, a petition (accompanied by bill, House, No. 141) of Marcus S. Vaughn for legislation to prohibit foreign governments from holding any interest in agricultural land. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act prohibiting the purchase of farm land by foreign governments.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 184 of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting after section 1 the following new section:-

3 Section 1A. (a) As used in this section the following words shall, unless the context
4 requires otherwise, have the following meanings:—

5 “Agricultural land” means the same as it is defined in section 1 of chapter 61A.

6 "Controlling interest" means either possession of more than 50 percent of the ownership
7 interests in an entity or a percentage ownership in an entity of 50 percent or less if such owner
8 directs the business and affairs of such entity without the requirement or consent of any other
9 party.

10 “Department” means the Department of Agricultural Resources.

11 "Foreign government" means a government or state-controlled enterprise of a foreign
12 government. The term does not include the government of the United States or any government
13 of its states, territories, or possessions.

14 "Interest" means any estate, remainder, or reversion, or portion of the estate, remainder,
15 or reversion, or an option pursuant to which one party has a right to cause legal or equitable title
16 to agricultural land to be transferred.

17 (b) Notwithstanding any general or special law to the contrary, on and after June 1, 2025,
18 no foreign government shall purchase, acquire, lease, or hold any interest in agricultural land in
19 the Commonwealth that is within a 20-mile radius of a United States military base. This section
20 shall not apply to (i) any interest in agricultural land held by a foreign government prior to June
21 1, 2025, or (ii) any federally recognized tribal government units and enterprises. Any transfer of
22 an interest in land in violation of this section shall be void.

23 (c) The Department shall compile an annual report in consultation with the appropriate
24 state agencies and boards for each calendar year containing the following:

25 1. The total amount of agricultural land that is under foreign ownership or leased by a
26 foreign government;

27 2. The percentage change in foreign ownership of agricultural land in the Commonwealth
28 for each year over the prior 10 years;

29 3. The purpose for which foreign-owned agricultural land in the Commonwealth is being
30 used currently. To the extent such information is available, the Department shall also include any

31 significant recent changes or trends in the uses of foreign-owned agricultural land in the
32 Commonwealth;

33 4. With the assistance of relevant state agencies, information regarding the extent of, and
34 any recent changes in, foreign ownership of energy production, storage, or distribution facilities
35 in the Commonwealth to the extent such information is available; and

36 5. Any legislative, regulatory, or administrative policy changes the Department
37 recommends in light of the information in this report.

38 (d) The report required in subsection (c) shall be compiled and submitted to both the
39 house and senate committees on ways and means and posted on the Department's website not
40 later than July 31 of each year detailing the findings of the previous calendar year.